

Professor Jayashankar Telangana State Agricultural University Act, 1963

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State of Telangana - Act

Professor Jayashankar Telangana State Agricultural University Act, 1963

TELENGANA

India

Professor Jayashankar Telangana State Agricultural University Act, 1963

Act 24 of 1963

Published on 5 August 2014

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Professor Jayashankar Telangana State Agricultural University Act, 1963

(Act

No. 24 of 1963

)

Last Updated 7th January, 2020

Chapter - I Preliminary

The Acharya N.G Ranga Agricultural University Act, 1963 received the assent of the Governor on the 27.12.1963. The said Act in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Notification issued in

G.O.Ms.No.9, Agriculture & Cooperation (Agri.III) Department, dated 05.08.2014.

1.

Short title, extent and commencement.

(1)

This Act may be called the Professor Jayashankar Telangana State Agricultural University Act, 1963.

(2)

It extends to the whole of the [State of Telangana]

[Substituted by G.O.Ms.No.9, Agriculture & Cooperation (Agri.III) Department, dated 05.08.2014.]

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(3)

It shall come into force on such [date]

[Came into force on 4th May, 1964.]

as the Government may by notification in the [Telangana Gazette, appoint.]

[Substituted by G.O.Ms.No.9, Agriculture & Cooperation (Agri.III) Department, dated 05.08.2014.]

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Academic Council" means the Academic Council of the University;

(b)

"Agriculture" includes the basic and applied sciences dealing with soil and water management, crop production, veterinary science, home science, horticulture, agricultural engineering and technology, marketing, processing, co-operation, farm forestry, land reforms, land management and betterment of the rural people;

(c)

"appointed day" means the date appointed under sub-section (3) of section 1 for the coming into force of this Act;

(d)

"Authority" means any Authority of the University specified in section 18;

(e)

"Board" means the Board of Management of the University;

(f)

"Faculty" means a Faculty of the University;

(g)

"Government" means the State Government;

(h)

"officer" means any officer of the University specified in section 9;

(i)

"prescribed" means prescribed by the statutes;

(j)

"Registrar" means the Registrar of the University;

(k)

"registered graduate" includes a graduate in agriculture registered under conditions prescribed in this behalf;

(l)

"statutes" and "regulations" respectively mean the statutes and regulations of the University made under this Act;

(m)

"student" includes a person enrolled in the University for taking a course of study for a degree, diploma or other academic distinction duly instituted, or for undergoing any training;

(n)

"teacher" [includes a Professor, an Associate Professor, an Assistant Professor]

[Substituted by Act No.33 of 1996.]

, reader, lecturer or other person appointed or recognised by the University for the purpose of imparting instruction or conducting and guiding research or extension programmes, and any person declared by the statutes to be a teacher;

(o)

["University" means the [Professor Jayashankar Telangana State Agricultural University]

[Substituted by Act No.32 of 1996.]

constituted under section 3;]

(p)

"University college" means a college established or maintained by the University and providing courses of study qualifying students for admission to the University examinations in accordance with the regulations.

Chapter - II The University

3.

The University.

(1)

There shall be constituted in, and for, the State of Telangana a University by the name of the 6 [Professor Jayashankar Telangana State Agricultural University], which shall consist of a Chancellor, a Vice-Chancellor, a Board of Management and an Academic Council.

(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on, him.

(4)

The headquarters of the University shall be at Rajendranagar in the Hyderabad District and it may extend to any place within a contiguous area of five miles around it.

4.

Objects of the University.

- The objects of the University, among others, shall be to make provision for the education mainly of the rural people of the State of Telangana in agriculture and to promote research, field and extension programmes in agriculture and agricultural production.

5.

University open to all persons.

- The University shall, subject to the provisions of this Act and the statutes, be open to all persons; but nothing in this section shall be deemed to require the University to admit to any course of study a larger number of students than may be prescribed:

Provided that the Government may reserve seats in colleges under the University for members of the socially and educationally backward classes, the Scheduled Castes and the Scheduled Tribes in accordance with such principles as may, from time to time, be determined by the Government in this behalf.

6.

Powers and functions of the University.

- The University shall have the following powers and functions, namely -

(a)

to provide for instruction, training and research in agriculture;

(b)

to provide for the advancement and dissemination of knowledge in the field and extension programmes in agriculture;

(c)

to institute courses of study and to hold examinations for, and to confer, degrees, diplomas and other academic distinctions on persons who have pursued a course of study, or carried on research in the University or in an institution recognised in this behalf by the University, as may be prescribed;

(d)

to confer honorary degrees or other academic distinctions, as may be prescribed;

(e)

to create teaching, research and extension posts required by the University and to appoint qualified persons to such

posts;

(f)

to institute and award fellowships including travelling fellowships, scholarships, studentships and prizes in accordance with the statutes;

(g)

to acquire, hold and dispose of property, and to contract and to do all other things necessary for, or incidental to, the purposes of the University;

(h)

to take over and maintain colleges relating to agriculture and hostels therefor;

(i)

to borrow money from the Government of India, any State Government or any other agency;

(j)

to establish and maintain the University colleges and hostels therefor;

(k)

to fix, demand and receive such fees and other charges as may be prescribed;

(l)

to provide such lectures and instruction for, and to grant such diplomas to, field workers, and other persons, as the University may determine;

(m)

to regulate the conduct of students, to maintain discipline among them and to make arrangements for promoting their health and welfare;

(n)

to create administrative, ministerial and other necessary posts and to make appointments thereto;

(o)

to co-operate with other Universities and authorities in such manner and for such purposes, as the University may determine; and

(p)

to do all such acts and things, as may be necessary for the furtherance of the objects of the University.

7.

Residence.

- Every student shall reside in a hostel, or under such conditions as may be prescribed.

8.

Visitation.

(1)

The Government shall have the right to cause an inspection to be made by such person or authority, as they may direct, of the affairs and properties of the University, or any college or institution maintained by the University, and to cause an inquiry to be made in respect of any matter connected therewith.

(2)

Before causing such an inspection or inquiry, intimation thereof shall be given to the University, [xxx]

[The words 'or the said college or institution' omitted by Act No.50 of 1976.]

which shall be entitled to have its nominee or nominees at such inspection or inquiry and to make representations in regard thereto.

(3)

The Government shall forward to the Board a copy of the report of inspection or inquiry for expressing its views and on receipt thereof, they may tender such advice or give such direction as they may consider necessary, and fix a time-limit for action to be taken by the Board in that regard. The Board shall, within the time so fixed, take necessary action and report the fact to the Government.

Chapter - III Officers of The University

9.

Officers of the University.

- The following shall be the officers of the University, namely:-

- (i)
the Chancellor;
- (ii)
the Vice-Chancellor;
- (iii)
the Registrar;
- (iv)
the Comptroller;
- (v)
the Dean of Student Affairs;
- (vi)
the Deans of the various Faculties;
- (vii)
the Director of Agricultural Experiment Stations;
- (viii)
the Director of Extension; and
- (ix)
such other persons in the service of the University as may be prescribed.

10.

The Chancellor.

- The Governor of Telangana shall be the Chancellor of the University. He shall by virtue of his office, be the head of the University, and shall, when present, preside at any convocation of the University. He shall exercise such other powers as may be conferred on him by or under this Act.

11.

The Vice - Chancellor.

- [(1) The Vice-Chancellor shall be a whole time officer and shall be appointed by the Chancellor. He shall be paid a salary of three thousand rupees per mensem inclusive of pension, if any:

[Provided that the Government may appoint the Vice- Chancellor temporarily, till the first Vice-Chancellor is appointed by the Chancellor.]

[Substituted by Act No. 50 of 1976.]

(2)

The Vice-Chancellor shall hold office for a term of three years and shall be eligible for reappointment for another term of three years.]

(3)

[The conditions of service other than the emoluments]

[Substituted by Act No.50 of 1976.]

of the Vice-Chancellor shall be such as may be prescribed and shall not be varied to his disadvantage after his appointment.

(4)

The Vice-Chancellor may, by writing under his hand addressed to the Chancellor, resign his office. The resignation shall be delivered to the Chancellor ordinarily sixty days prior to the date on which the Vice-Chancellor wishes to be relieved of his office, but the Chancellor may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Vice-Chancellor on leave, for whatever reason, or until the vacancy caused in any other manner is filled, the Chancellor shall appoint any person temporarily to act as Vice-Chancellor.

(6)

Where the post of the Vice-Chancellor falls permanently vacant either by resignation or otherwise, the vacancy shall be filled by the Chancellor in accordance with the provisions of sub-section (1), and the Vice-Chancellor so appointed shall hold office for a full term of [three years.]

[Substituted by Act No. 50 of 1976.]

(7)

If, in the opinion of the Chancellor, the Vice- Chancellor willfully omits or refuses to carry out the provisions of this Act or abuses the powers vested in him and if it appears to the Chancellor that the continuance of the Vice-Chancellor in office is detrimental to the interests of the University, the Chancellor may, [XXX]

[Omitted by Act No. 50 of 1976.]

by order, remove the Vice-Chancellor, after giving him an opportunity of showing cause against the action proposed to be taken in regard to him.

12.

Powers and duties of the Vice- Chancellor.

(1)

The Vice-Chancellor shall be the academic head and the principal executive officer of the University and shall, in the absence of the Chancellor, preside at any convocation of the University.

(2)

It shall be the duty of the Vice-Chancellor to ensure the faithful observance of the provisions of this Act and the statutes and he may exercise all powers necessary for this purpose.

(3)

The Vice-Chancellor shall have power to convene the meetings of the Academic Council.

(4)

The Vice-Chancellor shall exercise general control over the University and its affairs and shall be responsible for the due maintenance of discipline in the University.

(5)

The Vice-Chancellor shall be responsible for the presentation of the budget and the statement of accounts to the Board.

(6)

Subject to the control of the Chancellor, in any emergency, which, in the opinion of the Vice-Chancellor, requires, immediate action to be taken, he shall take such action as he deems necessary, and shall at the earliest opportunity intimate the action taken to the officer, authority or other body who or which in the ordinary course would have dealt with the matter.

(7)

Where any action taken by the Vice-Chancellor under sub-section (6) affects any person in service of the University to his disadvantage, such person may prefer an appeal to the Board within thirty days from the date on which such person has notice of the action taken.

(8)

[The Vice-Chancellor shall give effect to the decisions of the authorities of the University taken in accordance with the powers conferred by or under this Act.]

[Substituted by Act No. 50 of 1976.]

(9)

The Vice-Chancellor shall be responsible for a close co-ordination and integration of teaching, research, and extension.

(10)

The Vice-Chancellor shall exercise such other powers as may be prescribed.

13.

The Registrar.

(1)

The Registrar shall be a whole-time officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Registrar and the conditions of service shall be such as may be prescribed; Provided that the conditions of service of the Registrar shall not be varied to his disadvantage after his appointment.

(3)

The Registrar shall be responsible for the due custody of the records and the common seal of the University. He shall be ex-officio Secretary of the Board and of the Academic Council, and shall be bound to place before it all such information as may be necessary for the transaction of its business. He shall receive applications for entrance to the University and shall keep a permanent record of all courses, curricula and other information as may be necessary.

(4)

The Registrar may, by writing under his hand addressed to the Board, resign his office. The resignation shall be delivered to the Board ordinarily sixty days prior to the date on which the Registrar wishes to be relieved of his office, but the Board may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Registrar on leave, for whatever reason, or until the vacancy caused in any other manner is filled, the Vice-Chancellor shall appoint any person temporarily for a period not exceeding three months, to act as the Registrar.

(6)

The Registrar shall be responsible for the conduct of the examinations and for the due execution of all processes connected therewith.

(7)

The Registrar shall discharge such other duties and perform such other functions as may be prescribed or required, from time to time, by the Board or Vice-Chancellor.

14.

The Comptroller.

(1)

The Comptroller shall be a whole-time officer and shall be appointed by the Board in the manner prescribed.

(2)

He shall be paid such salary and allowances as may be prescribed.

(3)

The provisions relating to conditions of service other than emoluments, resignation, filling of temporary vacancies contained in sub-sections (3), (4) and (5) of section 11 shall apply to the office of the Comptroller subject to the variation that for the expressions "Vice-Chancellor" and "Chancellor", the expressions "Comptroller" and "Board" shall respectively be substituted.

(4)

The Comptroller shall manage the property and the investments of the University and tender advice in regard to its financial policy. He shall be responsible for the preparation of the budget and statement of accounts for presentation to the Vice-Chancellor.

(5)

The Comptroller shall be responsible for ensuring that no expenditure not duly authorised is incurred by the University otherwise than by way of investment and shall disallow any expenditure which may contravene the terms of any statute or for which provision is required to be made by the statutes but has not been made.

15.

Powers and duties of the Registrar and the Comptroller exercisable by a single person.

- The Board may direct that the powers and duties of the Registrar and the Comptroller shall be exercised and performed by a single person for such period as it deems fit.

16.

Dean of Student Affairs.

(1)

The Dean of Student Affairs shall be a whole-time officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Dean of Student Affairs shall be as prescribed.

(3)

The Dean of Student Affairs shall have the following duties, namely:-

(a)

to make arrangements for the housing of students;

(b)

to arrange a programme of student counselling;

(c)

to arrange for the employment of students in accordance with the plans approved by the Vice-Chancellor;

(d)

to supervise the extra-curricular activities and to look after the needs of students;

(e)

to assist in the placement of graduates of the University; and

(f)

to organise and maintain contact with the alumni of the University.

17.

Officers not to accept any remuneration from any source other than that provided by statutes.

- No officer shall accept any remuneration from any source other than the remuneration to which he is entitled under the statutes.

Chapter - IV Authorities of The University

18.

Authorities of the University.

- The following shall be the Authorities of the university, namely:-

(i)

the Board of Management;

(ii)

the Academic Council;

(iii)

the Boards of Faculties; and

(iv)

such other bodies as may be prescribed.

19.

Constitution of the Board.

(1)

The Chancellor shall, as soon as may be after the first Vice-Chancellor is appointed under sub-section (1) of section 11, take action to constitute the Board.

(2)

[The Board shall consist of the following members, namely:-

Ex-Officio Members:

(a)

the Vice-Chancellor;

(b)

the Secretary to Government, Panchayat Raj Department;

(c)

the Director of Agriculture;

(d)

the Director of Animal Husbandry;

(dd)

[the Secretary to Government, Finance Department.]

Other Members:

(e)

one person nominated by the Chancellor from amongst the members of the Indian Council of Agricultural Research;

(f)

one person, who is in the opinion of the Chancellor a distinguished agricultural scientist, nominated by the Chancellor;

(g)

three persons from the Academic Council nominated by the Chancellor;

(h)

four persons nominated by the Chancellor from amongst the Members of the State Legislature and the Members of Parliament elected from the State of [Telangana]

[Substituted by G.O.Ms.No.9, Agricultural & Cooperation (Agri.III) Department, dated 05.08.2014.]

;

(i)

[four persons]

[Substituted by Act No. 31 of 1996.]

nominated by the Chancellor from amongst the progressive agriculturists, of whom one shall be a woman;

(j)

one person nominated by the Chancellor from amongst the members of the State Chamber of Panchayat Raj;

(k)

[two persons nominated by the Chancellor from among the Agro Industrialists and other entrepreneurs, including self employed graduates.]

[Inserted by Act No. 31 of 1996.]

(3)

The Vice-Chancellor shall be ex-officio Chairman of the Board, and shall conduct the meetings of the Board in accordance with the statutes made in that behalf.]

[Sub-section (2) and (3) substituted by Act No.50 of 1976.]

(4)

The term of office of members of the Board other than ex-officio members shall be [three years:]

[Substituted by Act No.50 of 1976.]

Provided that no member of the Board who is [xxx]

[The words 'elected or' omitted by Act No.50 of 1976.]

nominated shall continue to be a member of the Board on his ceasing to hold the office by virtue of which he has been [xxx]

[Omitted by Act No.50 of 1976.]

nominated as member of the Board:

[Provided further that even if some of the members are nominated at different times to the Board under items (e) to (k) of sub-section (2), the term of three years in their case shall be reckoned from the date on which the notification constituting the Board was first issued.]

[Added by Act No.31 of 1996.]

(5)

The members of the Board shall be entitled to receive such daily and travelling allowances as may be prescribed but not to any remuneration.

20.

Powers and functions of the Board.

(1)

The Board shall exercise and perform the following powers and functions, namely:-

(a)

to approve the budget of the University presented by the Vice-Chancellor;

(b)

[to appoint the teachers of the University and such other employees of the University as may be prescribed on the recommendation of the selection committee constituted under section 32:

[Substituted by Act No.50 of 1976.]

Provided that the Board may invite any person of high academic distinction and professional attainments to accept a post of professor in the University and appoint him to that post;]

(c)

to acquire any property for the University and to hold or dispose of its properties;

(d)

to accept any property on behalf of the University;

(e)

to provide for the administration of any funds placed at the disposal of the University for the purposes intended;

(f)

to arrange for the investment and withdrawal of moneys of the University;

(g)

to direct the form and use of the common seal of the University;

(h)

to appoint such committees, either standing or temporary, as the Board may consider necessary;

(i)

to determine and regulate all policies relating to the affairs of the University in accordance with this Act and the statutes.

(2)

The Board shall meet at such time and place as it deems necessary but it shall hold a meeting at least once in every two months, and not less than half the number of its meetings in a year shall be held, at the headquarters of the University.

(3)

The Board may, for purposes of consultation, invite any person having practical experience or special knowledge of any subject under its consideration to attend its meeting. Such person shall have the right to speak in, and otherwise to take part in, the proceedings of such meeting, but shall not by virtue of this sub-section, be entitled to vote at any such meeting. A person attending any such meeting shall be entitled to such allowances as may be prescribed.

21.

The Academic Council.

(1)

The Academic Council shall consist of the following members, namely:-

(a)

the Vice-Chancellor of the University;

(b)

the Vice-Chancellors of the Andhra University, the Osmania University and Sri Venkateswara University;

(c)

the Director of Agriculture;

(d)

the Director of Animal Husbandry;

(e)

[the Director of Agricultural Experiment Stations;

[Substituted by Act No.50 of 1976.]

(f)

the Director of Extension;

(ff)

the Dean of the Indian Veterinary Research Institute;]

(g)

the Deans of the various Faculties;

(h)

the Dean of Student Affairs;

(i)

the Heads of Departments of the various Faculties;

(j)

the Professors of the University; and

(k)

[the Principals of the University Colleges;

[Substituted by Act No.50 of 1976.]

(l)

two members of the Board referred to in clauses (e) and (f) of sub-section (2) of section 19;

(m)

four persons nominated by the Vice-Chancellor, of whom two shall be from amongst the teachers for such period as may be prescribed.]

(2)

The Academic Council may co-opt as members not more than ten persons, for such period and in such manner, as may be prescribed so as to secure adequate representation of different aspects of agriculture.

(3)

The Vice-Chancellor shall be ex-officio Chairman of the Academic Council.

22.

Powers, functions and Duties of the Academic Council.

(1)

The Academic Council shall be in charge of the academic affairs of the University and shall, subject to the provisions of this Act and the statutes, superintend, direct and control, and be responsible for, the maintenance of standards of instruction, education and examinations and other matters connected with the obtaining of degrees and shall exercise such other powers, perform such other functions and discharge such other duties as may be laid down by or under this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, the Academic Council shall be entitled to-

(a)

advise the Vice-Chancellor and the Board on all academic matters, including the control and management of the libraries;

(b)

make recommendations to the Board -

(i)

for the institution of the professorships, associate professorships, assistant professorships, teacherships and other teaching posts and matters connected therewith;

(ii)

regarding the post-graduate teaching, research and extension;

(c)

formulate, modify, revise or rescind schemes in connection with the constitution or reconstitution of departments of teaching, research and extension; and

(d)

make regulations -

(i)

regarding the admission of students to the University;

(ii)

regarding the examinations and the conditions on which students shall be admitted thereto;

(iii)

relating to courses of study for degrees, diplomas and certificates.

[xxx]

[Proviso omitted by Act No.50 of 1976.]

23.

Faculties.

(1)

The University shall include the Faculties of Agriculture, Veterinary Science, Home Science and such other Faculties as may be prescribed.

(2)

Each Faculty shall comprise such departments with such assignment of subjects of study as may be prescribed.

(3)

There shall be a Board of each Faculty, the constitution and powers of which shall be as prescribed.

(4)

There shall be a Dean for each Faculty [who shall be appointed]

[Substituted by Act No.50 of 1976.]

in such manner and for such period, as may be prescribed.

(5)

The Dean shall be the Chairman of the Board of the Faculty and be responsible for the faithful observance of the statutes and regulations relating to the Faculty and for the organisation and conduct of the teaching, research and

extension work of the departments comprised therein.

(6)

Each department shall have a head whose appointment, powers and duties shall be as prescribed, and who shall be responsible to the Dean for the proper organisation and working of the department.

24.

Constitution of committees.

- Every Authority shall have power to appoint committees which may, unless otherwise provided in this Act, consist of the members of the Authority and such other persons as it may think fit.

25.

Filling of casual vacancies.

- Any casual vacancy among the members, other than ex-officio members, of any Authority shall be filled, as soon as conveniently may be, by the person, or Authority who appointed, elected, nominated or co-opted the member whose place has become vacant, and the person appointed, elected, nominated or co-opted to a casual vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

26.

Removal from membership of Authority.

- The Board shall remove any person from membership of any Authority on the ground that such person was convicted of an offence involving moral turpitude.

27.

Decision on question as to validity of membership.

- Where any question arises whether a person has been duly elected or appointed as, or is entitled to be, a member of an Authority other than the Board or whether any act or proceeding of an Authority including the Board is consistent with this Act and the statutes, it shall be referred to the Chancellor whose decision thereon shall be final.

28.

Act or proceeding of an authority not be invalidated by reason only of certain defects.

- No act or proceeding of any Authority shall be deemed invalid by reason only, of any defect in the constitution of such Authority, of the existence of any vacancy among its members, or, of the invalidity of the election of any of its members.

Chapter - V Research and Extension

29.

Agricultural Experiment Stations.

(1)

The University may establish and maintain one or more Agricultural Experiment Stations for research, both fundamental and applied in all Faculties, in addition to the maintenance of institutions which stand transferred to the University under sub-section (8) of section 43. The Board shall appoint, in the manner prescribed, a person who had training in agriculture as the Director of Agricultural Experiment Stations. The Director shall initiate, guide and coordinate all agricultural research and be responsible for the efficient working of such stations.

(2)

The University may, at any time, with the approval of the Government close down, either permanently or temporarily, any of the Agricultural Experiment Stations specified in sub-section (1).

30.

Agriculture and Home Science Extension Service.

(1)

The University shall establish an Agricultural and Home Science Extension Service for the purposes of -

(a)

undertaking extension programmes on a phased programme covering the entire State of Telangana in such manner as may be determined by the Government in consultation with the Board;

(b)

dissemination of information for the solution of problems relating to agriculture and domestic fields;

(c)

establishment of youth clubs for developing the interests of young people in agriculture; and

(d)
such other purposes as may be prescribed.

(2)
The Board shall appoint in the manner prescribed a person who had training in agriculture as the Director of Agricultural and Home Science Extension Service. He shall be responsible for dissemination of such information and planning and execution of a programme of extension work based upon the results of research.

31.
Co-ordination in research and extension work.

- The Government shall endeavour to secure proper coordination between the departments of the Government and the University in the conduct of research and extension work and may tender necessary advice to the Board in that regard.
Chapter - VI Appointment of Teachers, Etc.

32.
Constitution of a Selection Committee for appointment of officers and teachers of Faculty.

- [(1) The Board shall constitute a Selection Committee in regard to the appointment of teachers for each Faculty which shall consist of the following persons, namely:-

(i)
the Vice-Chancellor who shall be ex-officio Chairman of the Committee;

(ii)
the Dean of the Faculty concerned; and

(iii)
three experts in the case of selection of Professors, two experts in the case of selection of Associate Professors and one expert in the case of selection of Assistant Professors, the experts being from outside the University, having special knowledge of the subject of the Department in the Faculty. The experts are to be nominated by the Board.]

(2)
The teachers of a Faculty shall be appointed by the Board on the recommendation of the Selection Committee of that Faculty and their remuneration and other conditions of service shall be such as may be prescribed.

33.
Constitution of pension, insurance or provident fund.

(1)
The University shall constitute, for the benefit of its officers, teachers, clerical staff and other employees in such manner and subject to such conditions as may be prescribed, such pension, insurance and provident fund as it may deem fit.

(2)
Where any such pension, insurance or provident fund has been so constituted by the University, the Government may declare that the provisions of the Provident Funds Act, 1925 shall apply to such fund as if it were a Government Provident Fund:

Provided that the University shall have power in consultation with the Finance Committee, to invest the Provident Fund amount in such manner as it may determine.

34.
Tribunal of Arbitration for disputes between the University and its staff.

- Any dispute arising out of a contract between the University and any officer or teacher of the University shall, on the request of the officer or teacher concerned or at the instance of the Board, be referred to a Tribunal of Arbitration consisting of one member nominated by the Board, one member nominated by the officer or teacher concerned and an umpire appointed by the Chancellor. The decision of the Tribunal shall be final.

Chapter - VII University Funds, etc.

35.
General and other funds.

(1)
The income from fees realised by, any contribution and endowment received by, and all grants made to, the University, shall form one general fund to be called the "General Fund of the University" and all moneys so realised and received shall be credited to it.

(2)

The University may have such other funds and shall maintain such accounts in respect of every fund as may be prescribed.

35A.

[Borrowing of money.

[Inserted by Act No.3 of 1977 (w.e.f. 21.12.1976.)]

- The University may accept moneys from the Government of India, the State Government, the University Grants Commission and also borrow money from a Bank or a Corporation, for the purposes of the University:

Provided that where the University intends to borrow money from a Bank or a Corporation or both exceeding on amount of fifty thousand rupees at a time or in the aggregate it shall obtain the prior written approval of the Government therefor.

35B.

Certain restrictions in respect of financial matters.

- The University shall not divert earmarked funds for other purposes or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the Government or which imposes a recurring liability on the Government, after the assistance from the sponsoring authority ceases without the prior written approval of the Government:

Provided that Finance Committee may authorize the creation and filling up of posts of teachers for a period not exceeding one year, but any such post shall not be continued or created afresh for any period beyond the said period of one year without the prior written approval of the Government.]

[Substituted by Act No. 33 of 1996.]

36.

Finance Committee.

(1)

The Board shall constitute a Finance Committee consisting of the following persons, namely:-

(a)

the Vice-Chancellor;

(b)

[xxx]

[Omitted by Act No.50 of 1976.]

(c)

the Comptroller;

(d)

two members chosen by the Board from among its members.

(2)

The Finance Committee shall have the following powers and duties, namely:-

(a)

to examine the accounts of the University and its annual budget estimates and to advise the Board in respect thereof;

(b)

to review the financial position of the University from time to time; and

(c)

to make recommendations to the Board on all proposals involving expenditure, for which no provision or inadequate provision has been made in the budget, or in excess of the budget provision.

37.

Accounts and Audit.

(1)

The annual accounts shall be submitted by the Board to the Government who shall cause an audit to be made by such persons as the Government may appoint in this behalf.

(2)

The accounts when audited shall be printed and copies thereof shall, together with the copies of the audit report, be submitted by the Board to the Government with its comments. The Government shall cause the audit report together with the comments of the Board to be laid before each House of the State Legislature.

Chapter - VIII Statutes and Regulations

38.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the Authorities;

(b)

the powers, function, duties and conditions of service of the officers other than the Chancellor;

(c)

the methods of election in respect of the Authorities and the manner of resolving the disputes in respect thereof;

(d)

the procedure at meetings of such Authorities including the quorum for the transaction of business by them;

(e)

the designation, manner of appointment, powers and duties of the officers;

(f)

the classification and manner of appointment of teachers;

(g)

the holding of convocations to confer degrees and diplomas;

(h)

the conferment of honorary degrees and academic distinctions;

(i)

the establishment, amalgamation, sub-division and abolition of Faculties;

(j)

the establishment of departments of teaching in the Faculties;

(k)

the establishment and abolition of hostels maintained by the University;

(l)

the institution of fellowships, scholarships, studentships, bursaries, medals and prizes and the conditions of award thereof;

(m)

the conditions of registration of graduates and the maintenance of register thereof;

(n)

the entrance or admission of students to the University and their enrollment and continuance as such;

(o)

the courses of study to be laid down for all degrees and diplomas of the University;

(p)

the conditions under which students shall be admitted to the degree, diploma or other courses and to the examinations of the University and shall be eligible for the award of degrees and diplomas;

(q)

the conditions of residence of the students of the University and the levying of fees for residence in hostels maintained by the University;

(r)

the fees which may be charged by the University connected therewith;

(s)

the conditions and mode of appointment and the duties of examining bodies and examiners;

(t)

the conduct of examinations;

(u)

the conditions of service, remuneration and allowances, including travelling and daily allowances, to be paid to officers, teachers and other persons employed under the University; and

(v)

all other matters necessary for carrying out all or any of the purposes of the Act.

39.

Statutes how made.

(1)

The first statutes with regard to matters set out in clauses (a) to (m) of section 38 shall be made by the Government.

(2)

Subject to the prior approval of the Government, the Board may, from time to time, make any statute in addition to the first statutes referred to in sub-section (1), and may amend or repeal any statute in the manner hereinafter provided in this section.

(3)

The Academic Council may propose to the Board the draft of any statute to be made by the Board and such draft shall be considered by the Board at its next meeting:

Provided that the Academic Council shall not propose the draft of any such statute, any amendment of a statute or repeal of a statute affecting the status, powers or constitution of any existing authority until such authority has been given an opportunity to express its views on such proposal and any views so expressed shall be considered by the Board.

(4)

The Board may consider any such draft as is referred to in sub-section (3) and make the statute or reject it or return it to the Academic Council for re-consideration, either in whole or part, together with any amendments which it may suggest.

(5)

Any member of the Board may propose to it the draft of any statute, any amendment of a statute or repeal of a statute and the Board may either accept or reject the proposal if it relates to a matter not falling within the purview of the Academic Council. In case such draft relates to a matter within the purview of the Academic Council, the Board shall refer it for consideration to the Academic Council, which may either report to the Board that it does not approve the proposal, which shall then be deemed to have been rejected by the Board, or forward such draft to the Board in such form as the Academic Council may approve, and the provisions of this section shall apply in the case of a draft so forwarded as they apply in the case of a draft proposed to the Board by the Academic Council.

(6)

Every first statute made under sub-section (1) shall immediately after it is made, be laid before each House of the State Legislature if it is in session and if it is not in session in the session immediately following, for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the statute or in the annulment of the statute, the statute shall thereafter have effect only in such modified form or shall stand annulled, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under the statute.

40.

Regulations.

(1)

The authorities may make regulations consistent, with this Act and the statutes for all or any other matters which by this Act and the statutes are to be provided for by the regulations, and also for any other matter solely concerning such Authorities and not so provided.

(2)

Every Authority shall make regulations providing for the giving of notice to the members of such Authority of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Board may direct the amendment, in such manner as it may specify, of any regulation made under this section or the annulment of any regulation made thereunder by any Authority.

(4)

The Academic Council may, subject to the provisions of the statutes, make regulations providing for courses of study for the various examinations, degrees and diplomas of the University after receiving drafts of such regulations from the Board of Faculty concerned.

(5)

The Academic Council shall not amend a draft of a regulation received from the Board of a Faculty but may reject it or return it to the Board of Faculty for reconsideration either in whole or in part together with any amendment which it may suggest.

Chapter - IX Miscellaneous

41.

Annual report.

- The annual report of the University shall be prepared under the direction of the Vice-Chancellor and submitted by the Board to the Government one month before the annual meeting at which it is to be considered.

42.

Temporary appointment of officers.

- Notwithstanding anything in this Act, and until such time as the authorities are duly constituted, the Vice- Chancellor, may, subject to the prior approval of the Chancellor, appoint any officer [or constitute any committee]

[Inserted by Act No.11 of 1964.]

temporarily to exercise, perform and discharge all or any of the powers, functions and duties of such Authorities under this Act.

43.

[Powers of Government to transfer certain colleges and institutions to the University.

[Section 43 substituted by G.O.Ms.No.9, Agriculture and Cooperation (Agri.III) Department, dated 05.08.2014]

(1)

Notwithstanding anything contained in Acharya N.G. Ranga Agricultural University Act, 1963, the [Telangana Universities Act, 1991, or the statutes made thereunder, all the colleges and polytechnics, and other research and extension institutions located in Telangana State shall devolve to Professor Jayashankar Telangana State Agricultural University from the date notified in the Telangana Gazette by the Government in this behalf, be disaffiliated from Acharya N.G. Ranga Agricultural University and shall be maintained by the University as constituent Colleges, polytechnics and other research and extension institutions.]

(2)

The control and management of all the colleges, polytechnics and other research and extension institutions specified in sub-section (1) shall as from the date notified by the Government under that sub-section stand transferred to the University and all the properties and assets, and liabilities and obligations of the Acharya N.G. Ranga Agricultural University and Government in relation thereto shall stand transferred to, vest in, or devolve upon, the University.

(3)

The compensation payable by the University to Acharya N.G. Ranga Agricultural University in respect of the transfer and vesting of the properties and assets, and the devolution of liabilities and obligations, under sub-section (2) shall be such, as prescribed in the Andhra Pradesh State Reorganization Act, 2014 (Act No.6 of 2014).

(4)

Notwithstanding anything contained in this Act, and subject to the provisions of sub-section (5), where the control and management of any college has been transferred to the University under sub-section (2), the University shall employ all teachers and other employees as per the guidelines of the Andhra Pradesh State Reorganization Act, 2014 (Act No.6 of 2014).

(5)

Notwithstanding anything contained in sub-section (4) every such teacher or other employee of the Government or Acharya N.G. Ranga Agricultural University, as the case may be, shall, within such time as per the guidelines of Andhra Pradesh State Reorganization Act, 2014 (Act No.6 of 2014).

Provided that -

the service rendered by any such teachers or other employee under the Government or the Acharya N.G. Ranga Agricultural University as the case may be, upto the date notified as aforesaid shall be deemed to be service under the University and he shall be entitled to count that service for the purpose of increments, leave, pension or provident fund and gratuity as per the guidelines of Andhra Pradesh State Reorganisation Act, 2014.

(6)

Notwithstanding anything in sub-section (5) every such teacher or other employee who had exercised his option as per

guidelines of Andhra Pradesh State Reorganisation Act, 2014.

(7)

Notwithstanding anything contained in this Act or the statutes made thereunder, any student of the constituent College, who was studying for any examination of Acharya N.G.Ranga Agricultural University shall be permitted to complete his course in preparation therefore, and the University shall make arrangements for holding for such students examinations for such period as may be prescribed, in accordance with the curricula of studies of Acharya N.G.Ranga Agricultural University.

(8)

The Government shall by order direct that all the institutions under the control and management of the Government conducting research in the subject of Agriculture, Home Science & Agricultural Engineering Sciences shall be maintained by the University, with effect from such date or dates as may be specified in the order which shall in any case be before the expiration of three years from the appointed day. The control and management of such institution shall thereupon stand transferred to the University and all the properties and assets and liabilities and obligations, of the Government in relation thereto shall stand transferred to, vest in, or devolve upon, the University.]

44.

[Delegation of powers of the Board.

[Section 44 along with marginal heading added by Act No. 50 of 1976.]

- The Board may, by statutes made in this behalf, delegate to any officer or authority of the University any of the powers conferred on it by or under this Act, to be exercised by such officer or authority, subject to such restrictions and conditions as may be specified in such statutes.]

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